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be such a madman as is to be exempted from punishment: it must be a man that is totally deprived of his understanding and memory, and doth not know what he is doing, no more than an infant, than a brute, or a wild beast.” *Id.*, at 764–765.

And the court offered an accompanying test linking that lack of reason to *mens rea*: If a man is “deprived of his reason, and consequently of his intention, he cannot be guilty.” *Id.*, at 764; see *ibid.* (defining a “madman” as a “person that hath no design”); see also *Trial of William Walker* (Apr. 21, 1784), in 4 Old Bailey Proceedings 544, 547 (asking whether the defendant had a “distemper of mind which had deprived him of the use of his reason” or instead whether “he knew what he was doing [and] meant to do it”); *Beverley’s Case*, 4 Co. Rep. 123b, 124b, 76 Eng. Rep. 1118, 1121 (K. B. 1603) (asking whether a man “is deprived of reason and understanding” and so “cannot have a felonious intent”). The House of Lords used much the same standard in *Rex v. Lord Ferrers*, 19 How. St. Tr. 886 (1760), when sitting in judgment on one of its members. There, the Solicitor General told the Lords to address “the capacity and intention of the noble prisoner.” *Id.*, at 948. Relying heavily on Hale’s treatise, he defined the legally insane as suffering from an “alienation of mind” and a “total[] want of reason.” *Id.*, at 947. And in recapping the evidence on that issue, he asked about the defendant’s intention: “Did [Ferrers] proceed with deliberation? Did he know the consequences” of his act? *Id.*, at 948.⁹

⁹ Even in the face of these instructions, the dissent claims that *Arnold* and *Ferrers* actually used the moral-incapacity test. See *post*, at 305–307. The assertion is based on some “good and evil” language (in *Ferrers*, mostly from witnesses) appearing in the case reports. But scholars generally agree, in line with our view, that *Arnold* and *Ferrers* “demonstrate how strictly” courts viewed “the criteria of insanity.” 1 N. Walker, *Crime and Insanity in England* 53 (1968) (noting that the two decisions “have often been cited” for that proposition). Kahler himself does not dispute the point; indeed, he essentially concedes our reading. Rather than try

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In such cases, even the language of morality mostly worked in service of the emphasis on cognition and *mens rea*. The idea was that if a defendant had such a “total[] want of reason” as to preclude moral thinking, he could not possibly have formed the needed criminal intent. *Id.*, at 947. Lord Chief Justice Mansfield put the point neatly in *Bellingham’s Case*, 1 G. Collinson, Treatise on the Law Concerning Idiots, Lunatics, and Other Persons Non Compotes Mentis 636 (1812) (Collinson). He instructed the jury:

“If a man were deprived of all power of reasoning, so as not to be able to distinguish whether it was right or wrong to commit the most wicked transaction, he could not certainly do an act against the law. Such a man, so destitute of all power of judgment, could have no intention at all.” *Id.*, at 671.

On that account, moral incapacity was a byproduct of the kind of cognitive breakdown that precluded finding *mens rea*, rather than a self-sufficient test of insanity. See also *Rex v. Offord*, 5 Car. & P. 168, 169, 172 Eng. Rep. 924, 925 (N. P. 1831) (“express[ing] complete accordance in the observations of th[e] learned Judge” in *Bellingham*). Or said another way, a mentally ill defendant’s inability to distinguish right from wrong, rather than independently producing an insanity acquittal, served as a sign—almost a kind of evidence—that the defendant lacked the needed criminal intent.

Other early common-law cases do not adopt the *mens rea* approach—but neither can they sustain Kahler’s position. Kahler relies mainly on *Hadfield’s Case*, 27 How. St. Tr. 1281

to make the decisions say something they do not, he argues only that they were “outlier[s]” and “could hardly have been less typical.” Brief for Petitioner 22, n. 5; Reply Brief 4 (internal quotation marks omitted). But that contrasting response fares no better. As even the dissent agrees, these were the “seminal” common-law decisions relating to insanity—indeed, two of only a small number in that period to make it into official reports. *Post*, at 305.

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(1800), to show that common-law courts would acquit a mentally ill defendant who understood the nature of his act, but believed it moral. See Reply Brief 4. There, the defendant had deliberately set out to assassinate King George III on the view that doing so would bring about the Second Coming. See 27 How. St. Tr., at 1322. The judge instructed the jury that the defendant was so “deranged” as to make acquittal appropriate. *Id.*, at 1353. Maybe, as Kahler argues, that directive stemmed from the defendant’s inability to tell right from wrong. But the judge never used that language, or stated any particular legal standard, so it is hard to know. Still other judges explained insanity to juries by throwing everything against the wall—mixing notions of cognitive incapacity, moral incapacity, and more, without trying to order, prioritize, or even distinguish among them. See, e.g., *Regina v. Oxford*, 9 Car. & P. 525, 545–548, 173 Eng. Rep. 941, 950 (N. P. 1840); *Trial of Francis Parr* (Jan. 15, 1787), in 2 Old Bailey Proceedings 228–229; *Bowler’s Case*, 1 Collinson 674. Those decisions treat the inability to make moral judgments more as part of an all-things-considered assessment of legal insanity, and less as its very definition. But even if some of them belong in Kahler’s corner, that would be far from enough. Taken as a whole, the common-law cases reveal no settled consensus favoring Kahler’s preferred insanity rule. And without that, they cannot support his proposed constitutional baseline.

Only with *M’Naghten*, in 1843, did a court articulate, and momentum grow toward accepting, an insanity defense based independently on moral incapacity. See *Clark*, 548 U. S., at 749; *Leland*, 343 U. S., at 801; *supra*, at 274–275, 281. The *M’Naghten* test, as already described, found insanity in either of two circumstances. See *supra*, at 274–275. A defendant was acquitted if he “labour[ed] under such a defect of reason, from disease of the mind, [1] as not to know the nature and quality of the act he was doing; or, [2] if he did know it, that he did not know he was doing what was wrong.”

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10 Cl. & Fin., at 210, 8 Eng. Rep., at 722 (emphasis added). That test disaggregated the concepts of cognitive and moral incapacity, so that each served as a stand-alone defense. And its crisp two-part formulation proved influential, not only in Great Britain but in the United States too. Over the course of the 19th century, many States adopted the test, making it the most popular one in the country.

Still, *Clark* unhesitatingly declared: “History shows no deference to *M’Naghten* that could elevate its formula to the level of fundamental principle.” 548 U.S., at 749. As *Clark* elaborated, even *M’Naghten* failed to unify state insanity defenses. See 548 U.S., at 749–752. States continued to experiment with insanity rules, reflecting what one court called “the infinite variety of forms [of] insanity” and the “difficult and perplexing” nature of the defense. *Roberts v. State*, 3 Ga. 310, 328, 332 (1847). Some States in the 1800s gravitated to the newly emergent “volitional incapacity” standard, focusing on whether the defendant could at all control his actions. *Clark*, 548 U.S., at 749; see, e.g., *Roberts*, 3 Ga., at 331. One court viewed that inquiry as “much more practical” than the “right and wrong test,” which it thought often “speculative and difficult of determination.” *State v. Felter*, 25 Iowa 67, 82, 84 (1868); see *Leland*, 343 U.S., at 801 (recognizing such skepticism about the moral-incapacity test); *supra*, at 281. Another prophesied that the volitional test was the one “towards which all the modern authorities in this country[] are gradually but surely tending.” *Parsons*, 81 Ala., at 586, 2 So., at 859. But that test, too, failed to sweep all before it: State innovation proceeded apace. See, e.g., *State v. Pike*, 49 N. H. 399, 442 (1870) (applying the “product” test, which excuses a defendant whose crime “was the offspring or product of mental disease”); N. D. Cent. Code Ann. § 12.1–04.1–01(1)(a) (2012) (replacing the right-from-wrong test with an inquiry into whether the defendant’s act arose from “[a] serious distortion of [his] capacity to recognize reality”). Much as medical

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views of mental illness changed as time passed, so too did legal views of how to account for that illness when assigning blame.

As earlier noted, even the States that adopted *M’Naghten* soon divided on what its second prong should mean. See *supra*, at 274–275. Most began by asking, as Kahler does, about a defendant’s ability to grasp that his act was *immoral*. See, e.g., *Wright v. State*, 4 Neb. 407, 409 (1876); *State v. Spencer*, 21 N. J. L. 196, 201 (1846). Thus, *Clark* labeled *M’Naghten*’s second prong a test of “moral capacity,” and invoked the oft-used phrase “telling right from wrong” (or in older language, good from evil) to describe its central inquiry. 548 U. S., at 747, 753; see *supra*, at 275. But over the years, 16 States have reoriented the test to focus on the defendant’s understanding that his act was *illegal*—that is, legally rather than morally “wrong.”¹⁰ They thereby excluded from the ranks of the insane those who knew an act was criminal but still thought it right.

Contrary to Kahler’s (and the dissent’s) contention, that difference matters. See Reply Brief 7 (claiming that “there is little daylight between these inquiries”); *post*, at 312–313, 317 (same). The two tests will treat some, even though not all, defendants in opposite ways. And the defendants they will treat differently are exactly those Kahler (and the dissent)

¹⁰ See *State v. Skaggs*, 120 Ariz. 467, 472, 586 P. 2d 1279, 1284 (1978); *Wallace v. State*, 766 So. 2d 364, 367 (Fla. App. 2000); *State v. Hamann*, 285 N. W. 2d 180, 184 (Iowa 1979); *Commonwealth v. Lawson*, 475 Mass. 806, 811, 62 N. E. 3d 22, 28 (2016); *State v. Worlock*, 117 N. J. 596, 610–611, 569 A. 2d 1314, 1322 (1990); *People v. Wood*, 12 N. Y. 2d 69, 76, 187 N. E. 2d 116, 121–122 (1962); *State v. Carreiro*, 2013-Ohio-1103, 988 N. E. 2d 21, 27 (App.); *McElroy v. State*, 242 S. W. 883, 884 (Tenn. 1922); *McAfee v. State*, 467 S. W. 3d 622, 636 (Tex. Crim. App. 2015); *State v. Crenshaw*, 98 Wash. 2d 789, 794–795, 659 P. 2d 488, 492–493 (1983); Ark. Code Ann. § 5–2–301(6) (2017); Ill. Comp. Stat., ch. 720, § 5/6–2(a) (West 2016); Ky. Rev. Stat. Ann. § 504.020(1) (West 2016); Md. Crim. Proc. Code Ann. § 3–109(a) (2018); Ore. Rev. Stat. § 161.295(1) (2019); Vt. Stat. Ann., Tit. 13, § 4801(a)(1) (2019).

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focus on: those who know exactly what they are doing (including that it is against the law) but believe it morally justified—because, say, it is commanded by God (or in the dissent’s case, a dog). See Brief for Petitioner 15; *post*, at 315; *Schmidt*, 216 N. Y., at 339, 110 N. E., at 949.¹¹ A famed theorist of criminal law put the point this way:

“A kills B knowing that he is killing B, and knowing that it is illegal to kill B, but under an insane delusion that the salvation of the human race will be obtained by . . . the murder of B[.] A’s act is a crime if the word ‘wrong’ [in *M’Naghten*] means illegal. It is not a crime if the word wrong means morally wrong.” 2 J. Stephen, *History of the Criminal Law of England*, ch. 19, p. 149 (1883).

So constitutionalizing the moral-incapacity standard, as Kahler requests, would require striking down not only the

¹¹ The great judge (later Justice) whom the dissent cites to suggest there is no real difference between the legal wrong and moral wrong tests wrote a lengthy opinion whose point was the opposite. Consider a case, Judge Cardozo said: “A mother kills her infant child to whom she has been devotedly attached. She knows the nature and quality of the act; she knows that the law condemns it; but she is inspired by an insane delusion that God has appeared to her and ordained the sacrifice.” *People v. Schmidt*, 216 N. Y. 324, 339, 110 N. E. 945, 949 (1915). If the legal wrong test were used, Judge Cardozo continued, “it would be the duty of a jury to hold her responsible for the crime.” *Ibid.* But not if the focus was, as in the original *M’Naghten* test, on moral wrong. And that difference led the New York Court of Appeals to hold that the trial court’s jury instruction was in error. See 216 N. Y., at 340, 110 N. E., at 950. The additional cases the dissent cites to downplay the distinction between moral and legal wrong in fact follow *Schmidt* in recognizing when they diverge. See *Worlock*, 117 N. J., at 611, 569 A. 2d, at 1322 (explaining that “the distinction between moral and legal wrong may be critical” when, for example, a defendant “knowingly kill[s] another in obedience to a command from God”); *Crenshaw*, 98 Wash. 2d, at 798, 659 P. 2d, at 494 (acknowledging *Schmidt*’s view that even when a defendant “knows that the law and society condemn [her] act,” she should not be held responsible if “her free will has been subsumed by her belief in [a] deific decree”).

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five state laws like Kansas's (as the dissent at times suggests, see *post*, at 312), but 16 others as well (as the dissent eventually concedes is at least possible, see *post*, at 317). And with what justification? The emergence of *M'Naghten*'s legal variant, far from raising a due process problem, merely confirms what *Clark* already recognized. Even after its articulation in *M'Naghten* (much less before), the moral-incapacity test has never commanded the day. *Clark*, 548 U. S., at 749.¹²

Indeed, just decades ago Congress gave serious consideration to adopting a *mens rea* approach like Kansas's as the federal insanity rule. See *United States v. Pohlot*, 827 F. 2d 889, 899, and n. 9 (CA3 1987) (describing bipartisan support for that proposal). The Department of Justice at the time favored that version of the insanity test. Perhaps more surprisingly, the American Medical Association did too. And the American Psychiatric Association took no position one way or the other. Although Congress chose in the end to adhere to the *M'Naghten* rule, the debate over the bill itself reveals continuing division over the proper scope of the insanity defense.

¹² The diversity of American approaches to insanity is also evident in the States' decisions about which kinds of mental illness can support the defense. See *Clark*, 548 U. S., at 750, n. 11; *supra*, at 275, n. 1. Some States limit the defense to those with a "severe" mental disease. See, e. g., Ala. Code § 13A-3-1 (2015). Others prohibit its assertion by defendants with specific mental disorders. See, e. g., Ariz. Rev. Stat. Ann. § 13-502 (2010) ("psychosexual" or "impulse control disorders"); Ore. Rev. Stat. § 161.295(2) ("personality disorder[s]"). In particular, many States follow the Model Penal Code in prohibiting psychopaths from raising the defense. See ALI, Model Penal Code § 4.01(2), p. 163 (1985); e. g., Ind. Code § 35-41-3-6(b) (2019) ("abnormality manifested only by repeated unlawful or otherwise antisocial conduct"). All those limitations apply even when the defendant's mental illness prevented him from recognizing that his crime was immoral. In that way too, many States have departed from the principle that Kahler (along with the dissent) claims the Constitution commands.

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Nor is that surprising, given the nature of the inquiry. As the American Psychiatric Association once noted, “insanity is a matter of some uncertainty.” Insanity Defense Work Group, Statement on the Insanity Defense, 140 Am. J. Psych. 681, 685 (1983). Across both time and place, doctors and scientists have held many competing ideas about mental illness. And that is only the half of it. Formulating an insanity defense also involves choosing among theories of moral and legal culpability, themselves the subject of recurrent controversy. At the juncture between those two spheres of conflict and change, small wonder there has not been the stasis Kahler sees—with one version of the insanity defense entrenched for hundreds of years.

And it is not for the courts to insist on any single criterion going forward. We have made the point before, in *Leland*, *Powell*, and *Clark*. See *supra*, at 280–282. Just a brief reminder: “[F]ormulating a constitutional rule would reduce, if not eliminate, [the States’] fruitful experimentation, and freeze the developing productive dialogue between law and psychiatry into a rigid constitutional mold.” *Powell*, 392 U. S., at 536–537. Or again: In a sphere of “flux and disagreement,” with “fodder for reasonable debate about what the cognate legal and medical tests should be,” due process imposes no one view of legal insanity. *Clark*, 548 U. S., at 752–753. Defining the precise relationship between criminal culpability and mental illness involves examining the workings of the brain, the purposes of the criminal law, the ideas of free will and responsibility. It is a project demanding hard choices among values, in a context replete with uncertainty, even at a single moment in time. And it is a project, if any is, that should be open to revision over time, as new medical knowledge emerges and as legal and moral norms evolve. Which is all to say that it is a project for state governance, not constitutional law.

We therefore decline to require that Kansas adopt an insanity test turning on a defendant’s ability to recognize that

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his crime was morally wrong. Contrary to Kahler’s view, Kansas takes account of mental health at both trial and sentencing. It has just not adopted the particular insanity defense Kahler would like. That choice is for Kansas to make—and, if it wishes, to remake and remake again as the future unfolds. No insanity rule in this country’s heritage or history was ever so settled as to tie a State’s hands centuries later. For that reason, we affirm the judgment below.

It is so ordered.

JUSTICE BREYER, with whom JUSTICE GINSBURG and JUSTICE SOTOMAYOR join, dissenting.

Like the Court, I believe that the Constitution gives the States broad leeway to define state crimes and criminal procedures, including leeway to provide different definitions and standards related to the defense of insanity. But here, Kansas has not simply redefined the insanity defense. Rather, it has eliminated the core of a defense that has existed for centuries: that the defendant, *due to mental illness*, lacked the mental capacity necessary for his conduct to be considered morally blameworthy. Seven hundred years of Anglo-American legal history, together with basic principles long inherent in the nature of the criminal law itself, convince me that Kansas’ law “‘offends . . . principle[s] of justice so rooted in the traditions and conscience of our people as to be ranked as fundamental.’” *Leland v. Oregon*, 343 U. S. 790, 798 (1952) (quoting *Snyder v. Massachusetts*, 291 U. S. 97, 105 (1934)).

I

A much-simplified example will help the reader understand the conceptual distinction that is central to this case. Consider two similar prosecutions for murder. In Prosecution One, the accused person has shot and killed another person. The evidence at trial proves that, as a result of severe mental illness, he thought the victim was a dog. Prosecu-

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tion Two is similar but for one thing: The evidence at trial proves that, as a result of severe mental illness, the defendant thought that a dog ordered him to kill the victim. Under the insanity defense as traditionally understood, the government cannot convict either defendant. Under Kansas' rule, it can convict the second but not the first.

To put the matter in more explicitly legal terms, consider the most famous statement of the traditional insanity defense, that contained in *M'Naghten's Case*, 10 Cl. & Fin. 200, 8 Eng. Rep. 718 (H. L. 1843). Lord Chief Justice Tindal, speaking for a majority of the judges of the common-law courts, described the insanity defense as follows:

“[T]o establish a defence on the ground of insanity, it must be clearly proved that, at the time of the committing of the act, the party accused was labouring under such a defect of reason, from disease of the mind, [1] as not to know the nature and quality of the act he was doing; or, [2] if he did know it, that he did not know he was doing what was wrong.” *Id.*, at 210, 8 Eng. Rep., at 722.

The first prong (sometimes referred to as “cognitive incapacity”) asks whether the defendant knew what he was doing. This prong corresponds roughly to the modern concept of *mens rea* for many offenses. The second (sometimes referred to as “moral incapacity”) goes further. It asks, even if the defendant knew what he was doing, did he have the capacity to know that it was wrong? Applying this test to my example, a court would find that both defendants successfully established an insanity defense. Prosecution One (he thought the victim was a dog) falls within *M'Naghten's* first prong, while Prosecution Two (he thought the dog ordered him to do it) falls within its second prong.

In Kansas' early years of statehood, its courts recognized the *M'Naghten* test as the “cardinal rule of responsibility in the criminal law.” *State v. Nixon*, 32 Kan. 205, 206, 4 P. 159,

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160 (1884). Kansas “steadfastly adhered to that test” for more than a century. *State v. Baker*, 249 Kan. 431, 449–450, 819 P. 2d 1173, 1187 (1991). But in 1995, Kansas “‘legislatively abolish[ed] the insanity defense.’” *State v. Jorrick*, 269 Kan. 72, 82, 4 P. 3d 610, 617 (2000) (quoting Rosen, *Insanity Denied: Abolition of the Insanity Defense in Kansas*, 8 Kan. J. L. & Pub. Pol’y 253, 254–255 (1997)). Under the new provision, a criminal defendant’s mental disease or defect is relevant to his guilt or innocence only insofar as it shows that he lacked the intent defined as an element of the offense, or *mens rea*. If the defendant acted with the required level of intent, then he has no defense based on mental illness. Kan. Stat. Ann. §21–5209 (2018 Cum. Supp.).

Under Kansas’ changed law, the defendant in Prosecution One could defend against the charge by arguing that his mental illness prevented him from forming the mental state required for murder (intentional killing of a human being)—just as any defendant may attempt to rebut the State’s *prima facie* case for guilt. The defendant in Prosecution Two has no defense. Because he acted with the requisite level of intent, he must be convicted regardless of any role his mental illness played in his conduct. See 307 Kan. 374, 401, 410 P. 3d 105, 125 (2018) (acknowledging that Kansas’ *mens rea* approach “allows conviction of an individual who had no capacity to know that what he or she was doing was wrong”).

I do not mean to suggest that *M’Naghten*’s particular approach to insanity is constitutionally required. As we have said, “[h]istory shows no deference to *M’Naghten*.” *Clark v. Arizona*, 548 U. S. 735, 749 (2006). *M’Naghten*’s second prong is merely one way of describing something more fundamental. Its basic insight is that mental illness may so impair a person’s mental capacities as to render him no more responsible for his actions than a young child or a wild animal. Such a person is not properly the subject of the criminal law. As I shall explain in the following section, throughout history, the law has attempted to embody this principle

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in a variety of ways. As a historical matter, *M’Naghten* is by far its most prominent expression, but not its exclusive one. Other ways of capturing it may well emerge in the future. The problem with Kansas’ law is that it excises this fundamental principle from its law entirely.

II

The Due Process Clause protects those “‘principle[s] of justice so rooted in the traditions and conscience of our people as to be ranked as fundamental.’” *Leland*, 343 U. S., at 798. Our “primary guide” in determining whether a principle of justice ranks as fundamental is “historical practice.” *Montana v. Egelhoff*, 518 U. S. 37, 43 (1996) (plurality opinion). The Court contends that the historical formulations of the insanity defense were so diverse, so contested, as to make it impossible to discern a unified principle that Kansas’ approach offends. I disagree.

Few doctrines are as deeply rooted in our common-law heritage as the insanity defense. Although English and early American sources differ in their linguistic formulations of the legal test for insanity, with striking consistency, they all express the same underlying idea: A defendant who, due to mental illness, lacks sufficient mental capacity to be held morally responsible for his actions cannot be found guilty of a crime. This principle remained embedded in the law even as social mores shifted and medical understandings of mental illness evolved. Early American courts incorporated it into their jurisprudence. The States eventually codified it in their criminal laws. And to this day, the overwhelming majority of U. S. jurisdictions recognize insanity as an affirmative defense that excuses a defendant from criminal liability even where he was capable of forming the *mens rea* required for the offense. See Appendix, *infra*.

A

Consider the established common-law background of the insanity defense at and around the time the Framers wrote the Constitution. The four preeminent common-law jurists,

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Bracton, Coke, Hale, and Blackstone, each linked criminality to the presence of reason, free will, and moral understanding. It is “will and purpose,” wrote Henry de Bracton in his 13th-century treatise, that “mark *maleficia* [misdeeds].” 2 Bracton on Laws and Customs of England 384 (S. Thorne transl. 1968) (Bracton); Oxford Latin Dictionary 1067 (P. Glare ed. 1982). A “madman,” he explained, “can no more commit an *injuria* [unlawful conduct] or a felony than a brute animal, since they are not far removed from brutes.” 2 Bracton 424; Oxford Latin Dictionary, at 914. Seizing on Bracton’s reference to “brute animals” (sometimes translated “wild beasts”), the Court concludes that Bracton’s approach, like Kansas’, would excuse only those who lack capacity to form any intention at all. See *ante*, at 287. But what does it mean to be like a “brute animal”? A brute animal may well and readily intend to commit a violent act without being able to judge its moral nature. For example, when a lion stalks and kills its prey, though it acts intentionally, it does not offend against the criminal laws. See 2 Bracton 379 (noting that “murder” is defined as “by the hand of man” to “distinguish it from the case of those slain or devoured by beasts and animals which lack reason”).

Bracton’s other references to “madmen” shed further light on the meaning he attached to that term. Bracton described such persons as “without sense and reason” and “lack[ing] *animus*.” *Id.*, at 324, 424. And he likened a “lunatic” to an “infant,” who cannot be held liable in damages unless he “is capable of perceiving the wrongful character of his act.” *Id.*, at 324; see also 4 *id.*, at 356 (“[I]n many ways a minor and a madman are considered equals or not very different, because they lack reason” (footnote omitted)). Thus, Bracton’s “brute animal” included those who lacked the qualities of reason and judgment that make human beings responsible moral agents. See Platt, The Origins and Development of the “Wild Beast” Concept of Mental Illness and Its Relation to Theories of Criminal Responsibility, 1 Issues in Crim. 1, 6 (1965).

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Leaving Bracton, let us turn to Sir Edward Coke, writing in the early 17th century. Coke wrote that “the act and wrong of a mad man shall not be imputed to him,” not because he could not engage in intentional conduct (the equivalent of the modern concept of *mens rea*), but because he lacked something more—“mind or discretion.” 2 Institutes of the Laws of England §405, p. 247b (1628). Coke, like Bracton before him, likened a “mad man” to an “[i]nfant,” who could not be punished as a criminal “untill he be of the age of fourteene, which in Law is accounted the age of discretion.” *Ibid.* What is it that the “[i]nfant” lacks? Since long before Coke’s time, English jurists and scholars believed that it was the moral nature, not the physical nature, of an act that a young child is unlikely to understand. See Platt & Diamond, The Origins of the “Right and Wrong” Test of Criminal Responsibility and Its Subsequent Development in the United States: An Historical Survey, 54 Cal. L. Rev. 1227, 1233–1234 (1966) (Platt & Diamond).

Sir Matthew Hale also premised criminal liability on the presence of “understanding and liberty of will,” without which “there can be no transgression, or just reason to incur the penalty or sanction of that law instituted for the punishment of the crimes or offenses.” 1 History of the Pleas of the Crown, ch. 2, pp. 14–15 (1736). Hale, too, likened insane persons to “infants” under the age of 14, who were subject to the criminal laws only if they “had discretion to judge between good and evil.” *Id.*, ch. 3, at 26–27; *id.*, ch. 4, at 30 (a person who is “labouring under melancholy distempers hath yet ordinarily as great understanding, as ordinarily a child of fourteen years hath, is such a person as may be guilty of treason or felony”). Those suffering from “total insanity” could not be guilty of capital offenses, “for they have not the use of understanding, and act not as reasonable creatures, but their actions are in effect in the condition of brutes.” *Id.*, at 30–32.

Sir William Blackstone, whose influence on the founding generation was the most profound, was yet more explicit. A criminal offense, he explained, requires both a “vicious will”

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and a “vitious act.” 4 Commentaries on the Laws of England 21 (1769). Persons suffering from a “deficiency in will” arising from a “defective or vitiated understanding” were “not [criminally] chargeable for their own acts.” *Id.*, at 24. Citing Coke, he explained that murder must be “committed by a person of sound memory and discretion” because a “lunatic or infant” is “incapable of committing any crime, unless in such cases where they shew a consciousness of doing wrong, and of course a discretion, or discernment, between good and evil.” *Id.*, at 195–196 (emphasis deleted). And he opined that deprivation of “the capacity of discerning right from wrong” is necessary “to form a legal excuse.” *Id.*, at 189.

These four eminent jurists were not alone. Numerous other commentators expressly linked criminal liability with the accused’s capacity for moral agency. William Lambard’s 1581 treatise ranked a “mad man” as akin to a “childe” who had “no knowledge of good nor evil.” Eirenarcha, ch. 21, p. 218. If such a person killed a man, that is “no felonious acte” because “they can[n]ot be said to have any understanding wil[l].” *Ibid.* But if “upon examination” it appeared that “they knew what they did, [and] it was ill, the[n] seemeth it to be otherwise.” *Ibid.* (emphasis added). Michael Dalton’s 1618 manual for justices of the peace instructed that “[i]f one that is *Non compos mentis* . . . kill a man, this is no felonie; for they have no knowledge of good and evill, nor can have a felonious intent, nor a will or mind to do harme.” The Countrey Justice 215. William Hawkins, in 1716, wrote that “those who,” like “[l]unaticks,” are “under a natural Disability of distinguishing between Good and Evil . . . are not punishable by any criminal Prosecution whatsoever.” 1 Pleas of the Crown §1, p. 2; see also *id.*, at 1 (“The Guilt of offending against any Law whatsoever . . . can never justly be imputed to those who are either incapable of understanding it, or of conforming themselves to it”).

English treatises on the law of mental disability adopted the same view. George Collinson explained that “[t]o excuse a man in the commission of a crime, he must at the period

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when he committed the offence, have been wholly incapable of distinguishing between good and evil, or of comprehending the nature of what he is doing.” Treatise on the Law Concerning Idiots, Lunatics, and Other Persons Non Compos Mentis §7, p. 474 (1812) (Collinson); see also *id.*, §2, at 471 (“[A]n evil intention is implied in every offence, and constitutes the charge of every indictment: but a non compos, not having a will of his own, cannot have an intention morally good or bad; so that the overt act by which alone the motives of other men are discerned, with respect to him proves nothing”). Similarly, Leonard Shelford, summarizing English case law, wrote that “[t]he essence of a crime consists in the animus or intention of the person who commits it, considered as a free agent, and in a capacity of distinguishing between moral good and evil.” Practical Treatise on the Law Concerning Lunatics, Idiots, and Persons of Unsound Mind 458 (1833) (emphasis deleted).

The majority believes that I am “cherry-pick[ing]” references to moral understanding while ignoring references to intent and *mens rea*. See *ante*, at 288–290, and nn. 8, 9. With respect, I disagree. The Court points out, correctly, that many of the common-law sources state that the insane lack *mens rea* or felonious intent. But what did they mean by that? At common law, the term *mens rea* ordinarily incorporated the notion of “general moral blameworthiness” required for criminal punishment. Sayre, *Mens Rea*, 45 Harv. L. Rev. 974, 988 (1932); 3 Encyclopedia of Crime & Justice 995 (2d ed. 2002) (as used at common law, the term *mens rea* “is synonymous with a person’s blameworthiness”). The modern meaning of *mens rea* is narrower and more technical. *Ibid.* It refers to the “state of mind or inattention that, together with its accompanying conduct, the criminal law defines as an offense.” *Ibid.* When common-law writers speak of intent or *mens rea*, we cannot simply assume that they use those terms in the modern sense. That is an anach-

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ronism. Instead, we must examine the context to understand what meaning they ascribed to those terms. And when we do so, we see that, over and over again, they link criminal intent to the presence of free will and moral understanding. The Court dismisses those passages as just “some ‘good and evil’ language.” *Ante*, at 289, n. 9. But it fails to explain why, if *mens rea* in the modern sense were sufficient, these common-law writers discuss the role of moral agency at all, much less why such language appears in virtually every treatise and virtually every case. In the Court’s view, all that is just spilled ink.

The English case law illustrates this point. In the seminal case of *Rex v. Arnold*, 16 How. St. Tr. 695 (1724), the defendant stood accused of shooting Lord Onslow while laboring under the insane delusion that Onslow had bewitched him. *Id.*, at 699, 721. The Court emphasizes Justice Tracy’s statement to the jury that if a man is “‘deprived of his reason, and consequently of his intention, he cannot be guilty,’” concluding that the court adopted a modern *mens rea* test. *Ante*, at 289. But in the passage immediately preceding that statement, Justice Tracy explained that the defendant’s intent to shoot was clearly proved, and that the only remaining question was whether his mental illness excused him from blame:

“That he shot, and that wilfully [is proved]: but whether maliciously, that is the thing: that is the question; whether this man hath the use of his reason and sense? If he was under the visitation of God, and could not distinguish between good and evil, and did not know what he did, though he committed the greatest offence, yet he could not be guilty of any offence against any law whatsoever; for guilt arises from the mind, and the wicked will and intention of the man. If a man be *deprived of his reason, and consequently of his intention, he cannot be guilty*; and if that be the case, though he

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had actually killed my lord Onslow, he is exempted from punishment.” 16 How. St. Tr., at 764 (emphasis added; brackets in original).

See also *ibid.* (summarizing the testimony of one Mr. Coe, who testified that he went to the defendant three days after the shooting “and asked him, If he intended to kill my lord Onslow? and he said, Yes, to be sure”). On the next page, Justice Tracy concluded that the jury must determine whether the evidence “doth shew a man, who knew what he was doing, and was able to distinguish whether he was doing good or evil, and understood what he did.” *Id.*, at 765.

Likewise, in the case of *Rex v. Lord Ferrers*, 19 How. St. Tr. 886 (1760), the solicitor general instructed the members of the House of Lords to consider the “‘capacity and intention’” of the accused, to be sure, *ante*, at 289, but what did he mean by those terms? The ultimate question of insanity, he explained, depended on the defendant’s capacity at the time of the offense to distinguish right from wrong:

“My lords, the question therefore must be asked; is the noble prisoner at the bar to be acquitted from the guilt of murder, on account of insanity? It is not pretended to be a constant general insanity. Was he under the power of it, at the time of the offence committed? Could he, did he, at that time, distinguish between good and evil?” 19 How. St. Tr., at 948.

In summation, the solicitor general argued that Lord Ferrers’ own witnesses failed to provide any testimony “which proves his lunacy or insanity at any time.” *Id.*, at 952. Reviewing the pertinent evidence, he noted that one witness testified that he “had observed great oddities in my lord,” but acknowledged that he “never saw him in such a situation, as not to be capable of distinguishing between good and evil, and not to know, that murder was a great crime.” *Ibid.* Another admitted under questioning by the Lords that “he thought lord Ferrers capable of distinguishing between

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moral and immoral actions.” *Ibid.* The defendant’s brother was the only witness to testify that “at particular times, the noble lord might not be able to distinguish between moral good and evil,” but even he, the solicitor general argued, had been unable to testify to “any instance within his own recollection.” *Id.*, at 953. If Lord Ferrers’ bare intention to kill were sufficient to convict, why the extensive discussion of the evidence concerning his capacity for moral understanding?

These examples reflect the prevailing view of the law around the time of the founding. Judges regularly instructed juries that the defendant’s criminal liability depended on his capacity for moral responsibility. See, *e. g.*, *Trial of Samuel Burt* (July 19, 1786), in 6 Old Bailey Proceedings 875 (E. Hodgson ed. 1786) (to acquit based on insanity, it must be shown that the mental disorder “takes away from the party all moral agency and accountability,” and “destroys in them, for the time at least, all power of judging between right and wrong”); *Trial of Francis Parr* (Jan. 15, 1787), 2 *id.*, at 228 (jury must “judge whether at the moment of committing [the offense] he was not a moral agent, capable of discerning between good and evil, and of knowing the consequences of what he did”); *Bowler’s Case*, 1 Collinson 673–674, n. (judge “concluded by observing to the jury, that it was for them to determine whether the Prisoner, when he committed the offence with which he stood charged, was or was not incapable of distinguishing right from wrong”). The government’s attorneys agreed that this was the proper inquiry. See, *e. g.*, *Parker’s Case*, 1 *id.*, at 479–480 (the Attorney General argued that “the jury must be perfectly satisfied, that at the time when the crime was committed, the prisoner did not really know right from wrong”).

In none of the common-law cases was the judge’s reference to the defendant’s capacity for moral agency simply a proxy for the narrow modern notion of *mens rea*. See *ante*, at 290. Something more was required. Consider *Bellingham’s*

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Case, 1 Collinson 636. The defendant stood accused of the murder of Spencer Perceval, the Chancellor of the Exchequer, in the lobby of the House of Commons. *Ibid.* The Court emphasizes Chief Justice Mansfield's statement that one who could not distinguish right from wrong "‘could have no intention at all,’" concluding that Chief Justice Mansfield viewed moral incapacity as a symptom of cognitive breakdown rather than a test of insanity. *Ante*, at 290. But, as in *Rex v. Arnold*, see *supra*, at 305–306, the defendant's intention to shoot Perceval was not seriously in dispute. 1 Collinson 670. Instead, his guilt or innocence turned on his capacity for moral blame. The "single question" for the jury, charged the Chief Justice, "was whether, when [the defendant] committed the offence charged upon him, he had sufficient understanding to distinguish good from evil, right from wrong, and that murder was a crime not only against the law of God, but against the law of his Country." *Id.*, at 673. Lord Lyndhurst, presiding over the case of *Rex v. Offord*, 5 Car. & P. 168, 172 Eng. Rep. 924 (N. P. 1831), certainly understood that inquiry to be the crux of Chief Justice Mansfield's charge. Citing *Bellingham's Case*, he instructed the jury that "[t]he question was, did [the accused] know that he was committing an offence against the laws of God and nature?" 5 Car. & P., at 168, 172 Eng. Rep., at 925.

The Court dismisses other common-law cases as failing to articulate a clear legal standard. See *ante*, at 290–291. But these cases, too, required more than bare intent. In *Hadfield's Case*, 27 How. St. Tr. 1281 (1800), the defendant was acquitted after the prosecution conceded that he was "in a deranged state of mind" when he shot at King George III. *Id.*, at 1353. And in *Regina v. Oxford*, 9 Car. & P. 525, 173 Eng. Rep. 941 (N. P. 1840), the court observed that a "person may commit a criminal act, and yet not be responsible." *Id.*, at 546, 173 Eng. Rep., at 950. Although it acknowledged the difficulty of "lay[ing] down the rule of the English law on the subject," it summed up the inquiry as "whether the prisoner